

25STCV09126 25STCV09126

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Case Number: 25STCV09126 Hearing Date: August 19, 2026 Dept: 515

Defendant FCA US's ("Defendant") Motions in Limine

Below are the tentative rulings:

MIL No. 1 to exclude evidence regarding the absence of a corporate representative at trial is granted. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time.

The Court has determined that the probative value of such evidence is substantially outweighed by the probability that its admission will necessitate undue consumption of time and create substantial danger of undue prejudice, confusing the issues, and misleading the jury.

(EV. CODE § 352.)

MIL No. 2 to exclude evidence of alleged design defect is denied.

Plaintiffs are the only witnesses in their case, and Defendant does not identify any testimony from their deposition suggesting they intend to testify regarding design defects. That said, Plaintiffs are not expert witnesses who can testify about technical defects with their car. They are entitled, however, to testify about the impaired functionality of their car, the impact of the impairment on their ability to drive, and the generally reduced value of the car because of the need to take it for repairs.

MIL No. 3 to exclude any reference to the golden rule argument is granted as follows. The Court admonishes the parties to avoid making arguments that ask the jurors to put themselves in Plaintiffs' shoes or to act based on some ill-defined community interests. In closing arguments, it is appropriate for counsel to argue that jurors should use their common sense and

experience when evaluating the evidence.

MIL No. 4 to exclude any reference to non-recoverable damages is denied. Defendant fails to identify any specific evidence that it seeks to exclude. The moving party may at trial assert an objection to the introduction of specific evidence if and when this issue arises.

MIL No. 5 to exclude evidence of issues Plaintiffs did not experience is denied. Defendant fails to identify any specific evidence, including any specific TSBs, that it seeks to exclude. The moving party may at trial assert an objection to the introduction of specific evidence if and when this issue arises.

MIL No. 6 to exclude evidence of NHTSA documents, tread reports, and complaints from other vehicle owners is denied. Defendant fails to identify any specific evidence that it seeks to exclude. The moving party may at trial assert an objection to the introduction of specific evidence if and when this issue arises.

MIL No. 7 to exclude any argument of the term "lemon law" and the word "lemon" is granted. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time. The Court has determined that the probative value of such evidence is substantially outweighed by the probability that its admission will necessitate undue consumption of time and create substantial danger of undue prejudice, confusing the issues, and misleading the jury.
(EV. CODE § 352.)

MIL No. 8 to exclude evidence regarding Defendant's financial condition is granted. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time. The Court has determined that the probative value of such evidence is substantially outweighed by the probability that its admission will necessitate undue consumption of time and create substantial danger of undue prejudice, confusing the issues, and misleading the jury.
(EV. CODE § 352.)

MIL No. 9 to exclude evidence of Defendant's corporate wealth,

size, and resources granted. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time. The Court has determined that the probative value of such evidence is substantially outweighed by the probability that its admission will necessitate undue consumption of time and create substantial danger of undue prejudice, confusing the issues, and misleading the jury. (EV. CODE § 352.)

MIL No. 10 to exclude evidence regarding issues not reflected in the service history is denied. Defendant fails to identify any specific evidence that it seeks to exclude. The moving party may at trial assert an objection to the introduction of specific evidence if and when this issue arises.

MIL No. 11 to exclude evidence regarding any vehicle inspection conducted by Plaintiffs' expert without Defendant's expert present is moot because the Court excluded Plaintiffs' expert.

MIL No. 12 to exclude argument that dealership personnel are agents or are otherwise controlled by Defendant is denied. The Court has weighed the probative value of such evidence against the danger of undue prejudice and risk of necessitating undue consumption of time. The Court has determined that the probative value of such evidence is not substantially outweighed by the probability that its admission will necessitate undue consumption of time or create substantial danger of undue prejudice, confusing the issues, or misleading the jury. (EV. CODE § 352.) Notwithstanding the denial of this motion in limine, the moving party may renew the objection to the introduction of this evidence at trial, and the Court will rule on the evidentiary objection anew in the context of the other evidence that is presented at trial.

MIL No. 13 to exclude Plaintiffs' expert is moot because the Court already granted Defendant's oral request to exclude the expert. During the discovery phase of the case and prior to the 8/4/2026 FSC, Defendant noticed the expert's deposition, Plaintiffs served objections but never responded to Defendant's request for new dates for the deposition. At the FSC on 8/4/2026, the Court directed Plaintiffs' counsel to coordinate the setting of their expert's deposition by the continued FSC on 8/18/2026, or else the Court would entertain an oral request to exclude Plaintiffs' expert. On 8/11/2026, Defendant emailed Plaintiffs' counsel to schedule

the deposition of Plaintiffs' expert, asking for dates. Plaintiffs' counsel never responded, hence, the Court granted Defendant's oral request to exclude Plaintiffs' expert at the continued FSC on 8/18/2026.